

Court No. - 21

Case :- WRIT - C No. - 3018 of 2023

Petitioner :- Surendra Keshari @ Surendra Kumar

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar, Prithi Pal Verma, Reema Kumari

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Counsel for the respondent prays for and is granted time to obtain instruction.

List as fresh on 14th February, 2023.

Order Date :- 30.1.2023

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(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

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Verma, Reema Kumari

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard learned counsel for the petitioner and Shri Udit Chandra, learned counsel appears for the U.P. Power Corporation.

This writ petition has been preferred inter alia for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the Recovery citation dated 29.07.2022 passed by the respondent no. 2 (Annexure no. 2 to the writ petition).

ii.. Issue a writ order or direction in the nature of mandamus Commanding the respondent to restrain the recovery proceedings against the petitioner.

iii. Issue a writ order or direction in the nature of mandamus directing and commanding the respondent to decide the representation dated 14.01.2023 within stipulated time."

At the very outset, learned counsel for the petitioner states that he is ready and willing to deposit entire outstanding amount in case an easy instalment is fixed by the department.

Shri Udit Chandra, learned counsel for the power corporation fairly states that in case the petitioner moves an appropriate application, definitely the reprieve shall be extended to the petitioner strictly as per the provisions contained under section 6.14 of U.P. Electricity Supply Code, 2005.

Considering the facts and circumstances, once the liability has already been accepted, no useful purpose would be served in keeping the writ petition pending, with the consent of the parties, the writ petition is **disposed of** asking the petitioner to moves an appropriate application within two

weeks' before the executive engineer, respondent no. 2, in case any such application is preferred within the stipulated period as fixed by the Court, we hope and trust that easy instalments shall be fixed by the department considering the provisions contained under Section 6.14 of the U.P. Electricity Supply code, 2005.

Order Date :- 14.2.2023

Bhanu